

HOUSE JOINT RESOLUTION 729

By Lamberth

A RESOLUTION to propose an amendment to Article VII, Section 5 of the Constitution of Tennessee, to change the date of elections for judicial and other civil officers.

WHEREAS, Article VII, Section 5 requires elections for judicial and other civil officers to be held on the first Thursday in August, while Article II, Section 7 requires elections for members of the General Assembly to be held on the first Tuesday after the first Monday in November; and

WHEREAS, Article III, Section 2 requires the election for Governor to be held on the same day as for members of the General Assembly; and

WHEREAS, Congress has also specified the first Tuesday after the first Monday for the election of United States senators and representatives and electors for president, pursuant to 2 U.S.C.A. § 7 and 3 U.S.C.A. § 1, respectively; and

WHEREAS, having all federal, state, and local elections on the same day would save this State and its local governments money and increase voter participation in local government elections; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article VII, Section 5 of the Constitution of Tennessee be amended by deleting the following language:

Elections for Judicial and other civil officers shall be held on the first Thursday in August, one thousand eight hundred and seventy, and forever thereafter on the first Thursday in August next preceding the expiration of their respective terms of

service. The term of each officer so elected shall be computed from the first day of September next succeeding his election.

and substituting instead the following:

Beginning with the election held in 2034, judicial officers and all other elected county officials, except the assessor of property, are elected on the first Tuesday after the first Monday in November next preceding the expiration of their respective terms of service. The term of each officer so elected is computed from the first day of December next succeeding the officer's election. Beginning with the election held in 2032, the assessors of property are elected on the first Thursday in August next preceding the expiration of their respective terms of service. The term of the assessor of property so elected is computed from the first day of September next succeeding his election.

BE IT FURTHER RESOLVED, that the foregoing amendment be referred to the One Hundred Fifteenth General Assembly and that this resolution proposing such amendment be published by the Secretary of State in accordance with Article XI, Section 3 of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the Senate is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.